Notification Waiver Determination

Centurion – Boundary variation in respect of Red Hill Mining Lease

Acquisition	Centurion Coal Mining Pty Ltd (**Centurion**) applied for a notification waiver in respect of its proposed acquisition of a portion (the **Target Area**) of a mining lease held by the Central Queensland Coal Associates Joint Venture (**CQCA JV**) participants pursuant to a Boundary Variation Agreement with BM Alliance Coal Operations Pty Ltd as agent and manager for and on behalf of the CQCA JV, as described in the transaction documents provided as part of the application (the **Acquisition**). As a result of the Acquisition, the Target Area will be excised from the mining lease held by the CQCA JV and will become part of an adjoining mining lease which is held by Centurion.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	12 October 2026

Parties to the Acquisition	The acquirer, Centurion, was established by Peabody Energy Corporation (**Peabody**) for the purpose of owning and operating the Centurion Mine, an underground longwall metallurgical coal operation in the Bowen Basin, Queensland. Peabody is a global producer and supplier of metallurgical and thermal coal with operations and ownership interests in Australia and the United States. In Australia, Peabody owns seven coal mining operations across New South Wales and Queensland. Peabody's activities also include marketing and brokering coal produced by third parties, acting as both principal and agent, and trading coal and freight-related contracts through offices in the United States, Australia and China. The Target Area is an undeveloped underground coal prospect located on the western boundary of the Red Hill tenement and adjacent to the Centurion Mine in Queensland's Bowen Basin. The freehold land underlying the Target Area is already owned by Centurion. There are no active mining operations on the Target Area and the area remains largely undrilled. CQCA JV is a joint venture between wholly owned subsidiaries of BHP Group Limited and Mitsubishi Development Pty Ltd and forms part of the BHP Mitsubishi Alliance (**BMA**). BMA is a producer and supplier of metallurgical coal and owns five Bowen Basin mines (Goonyella Riverside, Broadmeadow, Peak Downs, Saraji and Caval

	Ridge) and owns and operates the Hay Point Coal Terminal near Mackay, Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the Acquisition does not result in the removal of a competitor or change to Centurion's (and Peabody's) competitive position as the Target Area is not currently producing metallurgical coal b. the increase in Centurion's (and Peabody's) share of the future supply of metallurgical coal, in Australia and globally, arising from the Acquisition would be small c. there are alternative producers and suppliers of metallurgical coal to customers in Australia and globally d. the Acquisition does not appear likely to otherwise limit or prevent competition from rivals. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act